

26TRCV01523 26TRCV01523

County: los-angeles

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Case Number: 26TRCV01523 Hearing Date: August 31, 2026 Dept: E

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. E

VIRGINIA

VALDEZ SCHALCK, individually and as authorized representative of JACOB
SCHALCK,

Plaintiffs,

Case No.:

26TRCV01523

vs.

[Tentative]

Sustained/denied

REDONDO

BEACH UNIFIED SCHOOL DISTRICT; and DOES 1 through 50, inclusive

Defendants.

Hearing

Date: August
31, 2026

Moving Parties: Defendant Redondo Beach Unified School
District

Responding Party: Plaintiff Virginia Valdez Schalck

HEARING: Demurrer and Motion to
Strike

The Court considered the moving,
opposition, and reply papers.

RULING

The Court
sustains the Demurrer with leave to amend.

The Court denies the
Motion to Strike as moot.

BACKGROUND

On April
28, 2026, Plaintiff
Virginia Valdez Schalck filed the Complaint against Defendant Redondo Beach
Unified School District.

On June 3, 2026, Plaintiff filed the
First Amended Complaint (FAC) against Defendant, alleging causes of action for
negligence, negligent supervision/retention, failure to discharge mandatory
duties, declaratory relief, and injunctive relief.

On July 2, 2026, Defendant filed the
Demurrer with Motion to Strike.

On July 20, 2026, Plaintiff filed
the Opposition.

On August 3, 2026, Defendant filed the Reply.

LEGAL STANDARD

A demurrer can be

used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) "To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (C.A. v. William S. Hart Union High School Dist. (2012)

53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-967.) A demurrer "does not admit contentions, deductions or conclusions of fact or law." (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

A pleading is uncertain if it is ambiguous or unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) A demurrer for uncertainty may lie if the failure to label the parties and claims renders the complaint so confusing defendant cannot tell what he or she is supposed to respond to. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.) However, "[a] demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.)

DISCUSSION

Meet and Confer

Before filing a demurrer, "the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." (Code Civ. Proc., § 430.41,

subd. (a).)

On May 27, 2026, the parties met via teleconference regarding the instant Demurrer. Therefore, the Court finds that Defendant has satisfied the meet and confer requirements.

Defendant demurs to
the FAC.

Statute of
Limitations

Defendant argues that the FAC is jurisdictionally barred because Plaintiff filed the original complaint one day late under the Government Claims Act. Defendant contends that the Court lacks jurisdiction over Plaintiff's claims because Government Code section 945.6 requires that any suit against a public entity be commenced within six months of the date written notice of rejection is personally delivered or deposited in the mail. (Gov. Code, § 945.6, subd. (a)(1).) Defendant maintains that the six-month period begins to run from the date the notice is deposited in the mail even where the claim was separately deemed rejected by operation of law. (*Edgington v. County of San Diego* (1981) 118 Cal.App.3d 39, 46.)

Defendant points to Plaintiff's own allegation that written notice of rejection was provided by the district's counsel on October 27, 2025. (FAC ¶ 7.) Defendant states that six months from October 27, 2025 is April 27, 2026, and that Plaintiff filed the Complaint on April 28, 2026, one day after the deadline. Thus, Defendant concludes that the action is time-barred on its face and that filing the First Amended Complaint cannot cure the jurisdictional defect.

In opposition, Plaintiff responds that untimeliness does not clearly and affirmatively appear on the face of the FAC. Plaintiff argues that Government Code section 945.6 runs six months from the date written notice of rejection is personally delivered or deposited in the mail, and that the pleading alleges only that counsel provided written notice on October 27, 2025, which reflects the date of reception rather than the date of any mailing. Plaintiff contends that because a limitations demurrer lies only where the bar clearly and affirmatively appears on the face of the complaint, the demurrer fails on this ground alone.

“Except as provided in Sections 946.4 and 946.6 and subject to subdivision (b), any suit brought against a public entity on a cause of action for which a claim is required to be presented in accordance with Chapter 1 (commencing with Section 900) and Chapter 2 (commencing with Section 910) of Part 3 of this division must be commenced...If written notice is given in accordance with Section 913, not later than six months after the date such notice is personally delivered or deposited in the mail.” (Gov. Code, § 945.6, subd. (a)(1).) “In order for the bar ... to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred.” (Committee for Green Foothills v. Santa Clara County Bd. of Supervisors (2010) 48 Cal.4th 32, 42.)

Here, the Complaint reads “The claim was rejected by operation of law on October 26, 2025, and written notice of rejection was provided by Defendant’s counsel on October 27, 2025.” (FAC ¶ 7.) However, the statute of limitations begins to run when the notice of rejection is personally delivered or deposited in the mail. As the FAC makes no claims regarding when the notice of rejection was deposited in the mail, nor that it was personally delivered, the Court finds that the FAC does not show that the claim is untimely on its face. Thus, the FAC cannot be demurred to on statute of limitations grounds.

Standing

Defendant argues that Plaintiff lacks standing because the substantive allegations of the FAC belong to Jacob Schalck rather than to Plaintiff. Although the pleading recites that Plaintiff sues solely in her individual capacity, Defendant contends that the alleged wrongs were done to Jacob and that the remedies sought vindicate his rights, and Plaintiff cannot establish standing merely by labeling the claims as her own when the underlying injuries, rights, and remedies belong to another. (Cloud v. Northrop Grumman Corp. (1998) 67 Cal.App.4th 995, 1004.) (Code Civ. Proc., § 367.)

Defendant maintains that every substantive grievance in the pleading is Jacob’s, pointing to the denied MCJROTC promotions, ribbons, and leadership opportunities, the ADHD diagnosis in Jacob’s record, the investigative notes concerning Jacob, the corrective

actions ordered to remedy alleged violations of Jacob's educational rights, and the delayed service-academy pathway. Defendant argues that Plaintiff's claimed personal injuries, emotional distress from filing paperwork and anxiety about her son's situation, do not state a cognizable claim against a public entity, and that no common law duty is owed to a parent arising from a district's handling of a student's educational records or complaint procedures. Defendant concludes that because Jacob is an adult, his individual legal rights belong to him and only he may prosecute claims seeking to vindicate them. (*Tepper v. Wilkins* (2017) 10 Cal.App.5th 1198, 1206.)

In opposition, Plaintiff responds that the Defendant misreads the FAC, because she expressly disclaims suing on her adult son's behalf and pleads categories of injury that are hers alone, which makes her the real party in interest as to those claims. (Code Civ. Proc., § 367.) She argues that the District failed to honor the mandatory records-amendment process of Education Code section 49070 after acknowledging in writing her son's July 14, 2025 authorization permitting her to act, having for months treated her as the proper party by mailing her the records and the amendment regulation, yet holding no meeting, issuing no determination, and giving no appeal-rights notice before invoking the age-of-majority rule for the first time in this litigation. (Ed. Code, § 49070.) Plaintiff contends that this denied her a statutory process in which she was the acknowledged participant and caused her own time, expense, and distress, and that she can at least amend to clarify the capacity in which she participated and the personal injuries she seeks to recover.

Plaintiff further argues that the written promises of compliance and personal notification were made to her by Superintendent Wesley on July 9, 2025 and confirmed by Assistant Superintendent Garland on July 17, 2025, so the damages from her reliance when the December 31, 2025 deadline passed are hers and not derivative of anyone else's injury. She adds that her physical harm, emotional distress, lost time, and out-of-pocket costs are documented personal injuries distinct from any claim belonging to her son, that these allegations must be accepted as true at the pleading stage, and that she requests leave to amend to the extent greater specificity is required.

"A complaint filed by a party who lacks standing is subject to demurrer." (*Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 1004.) "Every action must be prosecuted in the name of the

real party in interest, except as otherwise provided by statute.” (Code Civ. Proc., § 367.)

Here, every wrong alleged in the FAC was directed at Plaintiff's son Jacob. The negligence causes of action revolve around alleged discrimination and failure to investigate Jacob's MCJROTC program, and the mandatory duty allegations are based on Jacob's records and time in MCJROTC. While the Complaint alleges damages to Plaintiff arising from actions taken against Jacob, Plaintiff provides no duty that Defendant owed to her, as she was not a pupil, nor are any wrongs alleged to have been committed against her. Thus, the Court finds that Plaintiff is not the real party in interest.

Therefore, the Court sustains the Demurrer with leave to amend.

Motion to Strike

Defendant requests that the Court strike the allegations regarding Jacob's individual rights and damages regarding the “Kentucky Detour Year.” However, as the demurrer to the FAC was sustained, the Court finds that the instant Motion to Strike is moot.

Therefore, the Court denies the Motion to Strike as moot.